

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 25-12

DOLLAR GENERAL LOGISTICS, LLC

v.

YANG MING MARINE TRANSPORT CORP.

JOINT MOTION TO EXTEND DEADLINES

COME NOW the parties, Complainant Dollar General Logistics, LLC (“Complainant” or “Dollar General”), and Respondent Yang Ming Marine Transport Corp. (“Respondent” or “YM”) (Dollar General, collectively with Yang Ming, the “Parties”), by their respective undersigned counsel, and, pursuant to 46 C.F.R. Sections 502.69 and 502.102, hereby submit this Joint Motion to Extend Deadlines (“Motion”) and respectfully request a 120-day extension of the remaining deadlines set forth in the Presiding Officer’s December 17, 2025 Amended Scheduling Order.

I. The Current Schedule

On December 17, 2025, the Presiding Officer entered an Amended Scheduling Order with the following deadlines relevant to this Motion:

***January 9, 2026:** Substantial completion of document (including ESI) production and begin depositions of fact witnesses.*

***January 16, 2026:** Joint status report #3 regarding status of discovery including how many expert reports and depositions, if any, are planned and a proposed briefing schedule*

February 9, 2026: Complete depositions of fact witnesses and Last day to serve interrogatories, requests for admission, requests for production of documents

February 27, 2026: Disclosure of initial expert reports, if any

March 13, 2026: Disclosure of rebuttal expert reports, if any

March 20, 2026: Complete expert depositions and complete discovery.

The Parties are cognizant of the caution from the court concerning further extensions of those dates but with full regard for same the Parties respectfully submit the below as good cause for an additional 120-day (plus modifications) extension of each of the respective dates at issue.

For Complainant's part, by working through the holidays, Complainant has substantially completed its document production. However, in light of the fact that Respondent has produced only approximately 14% of the total documents Respondent indicates it is likely to produce, and that the documents Respondent produced prior to the January 9, 2026 current deadline for substantial completion date are exclusively from the time period prior to June 1, 2021, largely before the events relevant to this action, Complainant has not yet had the opportunity to begin to review Respondent's documents, let alone prepare for depositions and expert discovery. Accordingly, Complainant would be greatly prejudiced if it were forced to proceed in accordance with the existing discovery schedule when Respondent has not yet produced 86% of its documents.

Most relevant is the fact that each Party has completed collection of all relevant data from approximately 10 custodians each. In Complainant's case, it has produced some 29,427 documents to Respondent and substantially completed document production on Jan. 9, 2026. That leaves a significant challenge for each party in terms of review for key facts and further discovery, such as depositions. However, as meaningful as Complainant's discovery by way of documents is, it pales in the amount from Respondent. After initial review for duplication, privilege and the like,

Respondent produced about 29,541 documents to Complainant as of January 9, 2026, with further productions of approximately 80,000 documents in an additional four production volumes on the evening of January 15, 2026. The total amount of data produced by Respondent at the time of this filing is about 135 GB or 76,618 documents. An additional approximate amount of 543,287 documents are under review for relevancy and privilege. Another 92,982 documents are left to begin that initial review process. Thus, about 76,000 documents have now been produced just from the Respondent that both Parties must more fully review and assemble into manageable information.

However, the most daunting aspect is that Respondent has now collected and is reviewing over 540,000 documents of additional data with another about 90,000 documents to follow for that process, with a total of roughly 630,000 additional documents to be reviewed for production by Respondent for a grand total of about 706,000 documents. Many of those documents run many pages long. With the full efforts of Respondent's ESI vendor, Respondent expects to reduce that amount by deduplication and relevancy screening to a range of about 500,000 to 600,000 producible additional documents. Working as feverishly as possible with the full assistance of Respondent's ESI vendor, that process will likely only be completed within the next 7-10 days. But even if all the data were provided to Complainant today, both Parties' respective resources, augmented by outside vendors, would still be unable to digest and make that volume of information understandable and usable in settings such as depositions within the time frame currently set by the court.

Simply stated, this request is based on the pace of the Parties' review even when using additional resources and all good faith efforts. To address it in any workable manner, using all

reasonable efforts, indeed even extraordinary efforts, the Parties submit requires the request made herein, be granted.

II. Good Cause Exists to Extend the Current Deadlines

A. Large Discovery Volumes Contribute to the Need for Extended Timeframe

More specifically, the facts concerning the status of discovery can be summarized as follows: the Parties have worked diligently and cooperatively in order to meet the Scheduling Order's January 9, 2026, deadline for substantial completion of document (including ESI) production. To that end, *the Parties have each now completed identifying and collecting electronically stored information from relevant custodians which total over 20 between the parties, which data in total exceeds 730,000 documents of data.*

As part of its document and data collection process, Complainant collected more than 31,000 documents loaded after deduplication from 9 custodians as well as network share drives and other sources of data and produced approximately 29,500 documents to Respondent in compliance with the January 9, 2026 deadline for substantial completion. With the documents now accessible, both Parties must manually review them for the information they offer, organize them, address any privilege issues and finally marshal a working knowledge of all to allow further trial steps such as depositions to be done in a meaningful manner. That process necessarily requires substantial time and care. Respondent has been working closely with its e-discovery partner to expedite this process and has made significant progress.

Respondent has on its part collected over 700,000 individual documents of which over 600,000 are currently undergoing deduplicated and initial screening for basic relevancy, with another about 90,000 to follow that process. That entailed search and collection from overall network share drives, individual laptop and phone data collection from 12 custodians located in several States of the United States and in foreign countries, specifically Taiwan and the People's

Republic of China. Some of that required locating retired or difficult to locate devices such as phones and laptops replaced by newer models. Additionally, document collection required overcoming internal firewalls and other security protocols which slowed the process of collection considerably (Respondent is subject to sophisticated computer attacks on a daily basis leading to a great deal of security to see data extracted to third parties, such as Respondent's ESI vendor). The Parties have continuously worked with their respective e-discovery partners to streamline the process as much as possible and continues to do so, but there is no question the entire process has been time and effort intensive.

The Parties have been diligent in managing and working towards producing documents and have done so in a cooperative manner avoiding needless motion practice, which in other litigations tends to be a great anchor to progress. As previously reported, the Parties have conferred to clarify and narrow discovery requests to achieve focused responses and productions. The Parties have also endeavored to avoid "data dumps," i.e., the production of documents which contain search terms from the ESI Protocol, but which are not substantively responsive. These efforts have involved greater scrutiny during the review process and accordingly require a greater expenditure of time.

As a part of the ongoing review and rolling productions process, the Parties are working to review the substantial amount of documents that were pulled in by the Parties' ESI Protocol's terms. The Parties submit that the substantial volume of documents and the need for thorough review and the pace that the documents can be intelligently reviewed is a good cause reason for an extension of time to ensure that both parties can complete their discovery obligations effectively and each Party is not prejudiced by the fact that a very large amount of documents have been collected in accord with discovery demands properly put forth.

B. The Large Number of Depositions to Be Taken Makes Completion under the Current Schedule Impossible

The Parties remain respectful of the deadlines set forth in the most recent Amended Scheduling Order, and to date have worked together diligently and collaboratively to satisfy its terms. However, the complexity and most importantly the size of the responsive documentation that has been developed have made it clear to the Parties that even with all their best efforts they will not be able to complete production and review of document discovery within the present deadlines, and consequently would not be able to adequately take depositions based upon a full factual record and further would not be able to present their respective claims and defenses adequately in their respective briefs or in any eventual trial in this action.

The Parties have served written discovery requests, including interrogatories and requests for production, and have provided objections and responses to such requests. The Parties have and continue to work to limit the need for any discovery-related disputes to be brought before the Presiding Officer.

The Parties are aware of the prior Order of this court and the Chief Administrative Law Judge Erin M. Wirth's Order in *Way Interglobal Network LLC v. Shenzheng SCM Limited*, FMC Dkt. No. 22-28, Dk. No. 18, denying a request for 120 additional days and instead granting a 45-day extension. In making this Consent Motion, the Parties have limited their request to the most reasonable amount of time in which they believe they can feasibly conduct discovery in this large, complex litigation, with the understanding that they will also continue to work to stipulate to facts, limit depositions, and expeditiously resolve discovery disputes and produce documents promptly to the extent possible.

The Parties will endeavor to prevent any further requests for additional time, but limited extensions may become necessary if, for example, issues arise related to the collection and

production of documents located abroad or in the custody of non-parties, the need for significant Party depositions, or the need for testimony from non-parties or individuals located abroad (including employees of Respondent). The Parties will work to limit such extension requests, including by working to facilitate consent for email service of subpoenas and provision of contact information, where available. However, in the interest of full transparency, the Parties wish to note such possible issues for the Presiding Officer now. Indeed, as is a matter of public record, in an action before the Commission by the complainant in that case against another ocean carrier in *Bed Bath & Beyond Inc. v. Orient Overseas Container Line Limited and OOCL (Europe) Limited*, Docket No. 23-02, where the complainant has raised similar legal claims as in the present action, the parties there took over 30 total depositions.

Rule 102(a) of the Federal Maritime Commission's Rules of Practice and Procedure, 46 C.F.R. Section 502.102(a), provides in relevant part: "Motions for enlargement or reduction of time for the filing of any pleading or other document, or in connection with the procedures of subpart L of this part, may be granted upon a showing of good cause."

As shown above, a higher volume of documents by many magnitudes is involved in this matter than the 20,000 pages cited by the parties in *One Banana North America Corp. v Hapag-Lloyd AG et al.*, FMC Dkt. No. 22-03, in which the Presiding Officer granted an approximate 75-day extension from the originally ordered production and deposition deadlines. Instead, this case is much more similar to that in *Bed Bath & Beyond Inc. v. Orient Overseas Container Line Limited and OOCL (Europe) Limited*, Docket No. 23-02, where, as mentioned over 30 depositions were taken. Given the significant number of custodians in the present case, it is possible that the number of depositions conducted in this case will approximate those which were taken in the *BBBY v.*

OOCL proceeding. If so, both Parties are intent on avoiding any wasteful actions and will work to streamline all such developments to their fullest ability.

III. Conclusion

Given that the Parties are still working diligently to review and produce documents, the Parties respectfully submit that an extension of the remaining deadlines the Presiding Officer's December 17, 2025 Amended Scheduling Order is necessary to allow the Parties a fair opportunity to produce documents, depose each other's respective fact witnesses, and assess any additional discovery. The Parties will endeavor to avoid seeking additional extensions of time and, to the extent motions are needed, will seek to raise them as soon as the need appears and, where possible, file them jointly.

The Parties therefore jointly request the following amended schedule, which (accounting for weekends and holidays) moves 120 days from the first deadline of the present Amended Scheduling Order for substantial completion of document (including ESI) production; thereafter adding 50% of the intervals for subsequent deadlines included in the Amended Scheduling Order; and proposing a merits briefing schedule of 32/33/22 days for the Parties' respective briefs:

May 8, 2026	Substantial completion of document (including ESI) production
May 15, 2026	File Joint Status Report #4
June 22, 2026	Complete depositions of fact witnesses
June 22, 2026	Last day to serve interrogatories, requests for admission, requests for production of documents
June 29, 2026	Joint Status Report #5
July 20, 2026	Disclosure of initial expert reports, if any
August 10, 2026	Disclosure of rebuttal expert reports, if any
August 20, 2026	Complete expert depositions and complete discovery
September 21, 2026	Complainant's Opening Brief
October 23, 2026	Respondent's Answering Brief
November 13, 2026	Complainant's Reply Brief

Pursuant to 46 C.F.R. Section 502.71(a), counsel for Complainant and counsel for Respondent have discussed this Motion with each other in a good faith effort to determine whether there is any opposition to the relief sought and, if there is opposition, to narrow the areas of disagreement. The Parties each agree to the relief requested in this Motion.

WHEREFORE, the Parties jointly pray that their Joint Motion to Extend Deadlines be granted.

Dated: January 16, 2026

Respectfully submitted,

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